

iDiscovery Solutions, Inc.
1480 Hampton Course
St. Charles, IL 60174

312.841.4419

rkirtley@idsinc.com

Profile on LinkedIn

@iDiscoveryInc

ROBERT KIRTLEY

Affiliated Expert, Cybersecurity, Governance, and Compliance

Mr. Robert Kirtley is an Affiliated Expert for Cybersecurity, Governance, and Compliance for iDiscovery Solutions (iDS) in Washington D.C.

Robert has over 25 years of management consulting experience with a focus on providing strategy, operations, and technology infrastructure services in the areas of compliance, information governance, and security. Prior to joining iDS, Robert spent twelve years with Deloitte Consulting, ten years with Duff & Phelps and four years with his own firm, creating consulting practices that centered on serving legal-oriented organizations, including law firms and corporate and government legal and compliance departments. As an instructor for the SANS Institute, Robert has taught more than 1,000 students both deeply technical and managerial courses covering cybersecurity and information management. Robert has also worked with several organizations to design and implement controls to facilitate achieving either certifications such as ISO 27001 or to document compliance with SOX 404 controls and System & Organization Controls (SOC).

Robert leads iDS's efforts to provide management consulting projects for corporations and law firms. In addition to our broader consulting services, he is responsible for our firm's Information Strategy and Governance Practice. He has managed hundreds of client engagements, including long term, large-scale projects for clients with teams ranging from 2 people to more than 100. Robert has also worked with clients to plan and execute incident response efforts in the event of a suspected data breach or system compromise.

He is a frequent speaker on cybersecurity and has written a number of articles on cybersecurity issues specifically dealing with topics within the legal space.

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SELECT CONSULTING/MANAGEMENT EXPERIENCE

- Developed and in the process of implementation of a global information governance program for a publicly-traded US software firm. Focused on risk identification and mitigation for the firm. North American implementation is mostly complete, with Asia in process and UK/EU/Middle East/Africa coming up.
- Designed and developed an information governance program for a global retailer, defining data security and data privacy requirements for its U.S., European/U.K., and Asian operations
- Worked with a leading global publisher to perform an assessment of its information security program, identifying vulnerabilities and developing both short and long-term plans for remediation of issues
- Evaluated cybersecurity measures in place for a global company to assess whether it had taken reasonable measures to protect its intellectual property in a matter before the International Trade Commission.
- Designed and implemented a data security and privacy program for a leading pharmaceutical firm that addressed both internal employee and subcontractor requirements. Identified requirements and implemented a program to comply with HIPPAA/PHI and customer data privacy needs
- Assisted a legal professional services firm with incident response related to a network intrusion. Conducted a forensic investigation to determine the extent of the data intrusion and confirmed that there was no reportable data breach
- Led a project to develop and implement an information management program for a leading public utility. Data privacy requirements for employees and customers were a key element of the program
- Conducted forensic work with an international technology firm that had a data breach to identify and document which systems, clients, and data sets were compromised. Coordinated the design and development of a remediation and information security program to improve future security posture and reduce the risk of future breaches

EDUCATION & CERTIFICATIONS

- Masters of Business Administration in Finance with a concentration in Strategic Management, Wharton School at the University of Pennsylvania, 1992
- Bachelor of Science in Finance, University of Minnesota Carlson School, 1986
- GSLC – GIAC Security Leadership Certification
- GSEC – GIAC Security Essentials Certification
- U.S. Department of Defense Directive 8140 – Information Assurance, Level II certification for technical data security
- U.S. Department of Defense Directive 8140 – Information Assurance, Level III certification for information management

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PUBLICATIONS

1. "Challenges and Tips for E-Discovery in the Cloud," ILTA White Paper, April 2015
2. "Lots of Work for GCs Before and After SCOTUS Health Care Ruling," Corporate Counsel Magazine, June 2012
3. "How a Robust Records and Information Management Program Can Protect Your Intellectual Property and Information Assets," Metropolitan Corporate Counsel, May 2011
4. "The Principles of Corporate Governance And What This Means For Your Information," Metropolitan Corporate Counsel, April 2011
5. "Fin Reg and Diversity - Federal Agency Requirements and the Lessons for Corporate Legal Departments," Metropolitan Corporate Counsel, October 2010
6. "Why We Still Need Records Management," Metropolitan Corporate Counsel, October 2010
7. "Modernizing Your Records Information Management Program," Metropolitan Corporate Counsel, June 2010
8. "Policy Management Needs Improvement," Compliance Week, February 9, 2010
9. "Mission Matters in Information Management Programs," Metropolitan Corporate Counsel, January 2010
10. "Corporate Counsel Push Diversity Despite Downturn," Law360, November 12, 2009
11. "Corporate Counsel Seek Ways to Demonstrate Value," Law360, October 12, 2009
12. "The New Business of Managing Information – A Process-Centric Approach," Metropolitan Corporate Counsel, September 2009
13. "Governance, Risk and Compliance - GRC - An Evolving Imperative In A Global Economy," Metropolitan Corporate Counsel, September 2008
14. "Data Privacy - How Improved Governance and Compliance Pays Off," Metropolitan Corporate Counsel, November 2008

TESTIFYING EXPERIENCE

1. Expert Report and Deposition on information on mobile devices, Wellin et al v. Wellin et al., US District Court, District of South Carolina, Charleston Division (2018)
2. Declarations on forensic artifacts and related analyses, IQVIA, Inc. et al v. Veeva Systems, Inc., US District Court, District of New Jersey (2018)
3. Declarations on analysis of structured data, Ortega, et al, v. J.B. Hunt Transport, Inc., US District Court, Central District of California (2018)
4. Declaration on records production from corporate systems, The United States of America ex rel. Cori Rigsby and Kerri Rigsby v. State Farm Fire & Casualty Company, et al, US District Court, Southern District of Mississippi (2018)
5. Declarations on backup tapes and restoration efforts, The Physicians Alliance Corporation v. WellCare of Louisiana, Inc. et al, US District Court, Middle District of Louisiana (2018)
6. Declaration on structured data sources, Craftwood Lumber Company v. Senco Brands, US District Court, Northern District of Illinois, Eastern Division (2016)

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7. Declaration on eDiscovery standards, Monje et al v. Spin Master, Inc., et al., US District Court, Arizona (2016)
8. Declaration on structured data sources and burdens of retrieval, Adams v. Midwest Insurance, (2015)
9. Declaration on native format of email, Cheryl Borden and Sandra Miller v. Embassy Management, LLC et al., Superior Court, State of Washington, County of Pierce (2015)
10. Declaration on native format of email, Kathleen Story and Allisa Root v. Heartland Grading et al., Superior Court, State of California, County of San Diego (2014)
11. Declaration on cost of eDiscovery, Christopher Stephen Miller v. Hartford Securities Distribution Company, Inc., Financial Industry Regulatory Authority, Dispute Resolution – Arbitration (2013)
12. Declaration on cost of eDiscovery, Ashwin Nanda v. Western Dental Services, Inc. et al., Superior Court, State of California, County of San Francisco (2013)
13. Expert Report, Deposition and Court Testimony regarding website structure and analysis, Harbor Breeze Corporation, Inc. v. Newport Landing Sportsfishing, et al., Superior Court, State of California, Los Angeles (2012)

SELECT SPEAKING ENGAGEMENTS AND CONFERENCES

1. "Prepping for Business Continuity Yet Again – Business Continuity in the Age of Covid," IIA/ISACA IT Hacking Conference, Chicago, IL November 10, 2020
2. "The Role of Tabletop Exercises in Preparing for a Data Breach," ACC Foundation Cybersecurity Summit, Washington D.C., January 28, 2020
3. "Escalating Cyber Risk from the IT Department to the Boardroom," IG3 West Conference on Cybersecurity and Computer Forensics, Newport Beach, CA, December 12, 2019
4. "The Human Mind in the Age of Intelligent Machines," IG3 West Conference on Ediscovery and Information Governance, Newport Beach, CA, December 10, 2019
5. "Not a matter of if... Effective Planning for Business Continuity and Disaster Recovery," IIA/ISACA IT Hacking Conference, Chicago, IL, October 29, 2019
6. "Cybersecurity Issues in Internet of Things ("IOT") Devices and Data," ACC Foundation International Cybersecurity Summit, Vancouver, Canada, July 11, 2019
7. "How do GC's Forge an Alliance with the CISO and Board on Cybersecurity Issues?" ACC Foundation International Cybersecurity Summit, Vancouver, Canada, July 11, 2019
8. "Finance Fundamentals: Building the Business Case for Security," SANS Santa Monica Conference, December 4, 2018
9. "Basics of Finance and Security: Justifying Security Initiatives," SANSFIRE Conference, July 16, 2018
10. "Disaster Recovery and Business Continuity – Key steps to building a successful approach," SANS Community Security Night Meeting, Sydney, Australia, July 10, 2018
11. "Building the Financial Justification for Better Cybersecurity," Cyber Defence Canberra, Canberra, Australia, July 3, 2018

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12. "Finance Fundamentals: Justify your Incident Response Plan!" SANS San Francisco Conference, December 5, 2017
13. "Not a Matter of If... Incident Handling and Business Continuity/Disaster Recovery Planning," CheddarCon, Wisconsin F.B.I. InfraGard Conference, Keynote Speaker, September 7, 2017
14. "20 E-Discovery Warnings in 60 Minutes," Iowa Defense Counsel Association, September 23, 2016
15. "Data Privacy – Global Privacy Laws, Steps to Compliance, and Breach Response," Illinois Paralegal Association, April 6, 2016
16. "Information Security Strategies – Key Steps to Reduce Your Firm's Cyber Security Risk," Defense Research Institute, Leadership Conference, January 14, 2016
17. "Modern Multifactor Authentication," ILTA Conference, September 2, 2015
18. "Building the Foundation for a Secure Enterprise: The Critical Controls, ISO27001 and Other Approaches," ILTA Conference, September 2, 2015
19. "20 eDiscovery Warnings in 60 Minutes," ILTA Conference, September 1, 2015
20. "Houston, We Have a Problem: Digital Forensic and Incident Response Planning," ILTA Conference. September 1, 2015
21. "Is Your Bar the Next Target? How to Reduce Security Risks," National Association of Bar Executives, American Bar Association Annual Meeting, July 29, 2015
22. "Mobile Communications Security Threats," ILTA LegalSEC Security Conference, June 8, 2015
23. "Cyber Security for Litigation Support Professionals," ILTA, December 2, 2014
24. "Into the Breach – Preparing for, Preventing, and Recovering from a Data Breach," ILTA February 2, 2014
25. "E-Discovery Metrics: Advanced Analytics in Practice," Exterro Annual Conference, September 24, 2013
26. "Technology, Crime & the Workplace: New Developments and Strategies for In-House Counsel," Association of Corporate Counsel, Boston, MA, October 10, 2012

PROFESSIONAL AFFILIATIONS

- SANS Cybersecurity Advisory Board – August 2013 – Present
- InfraGard Member, Chicago Chapter – September 2015 - Present

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